

26STCV04975 26STCV04975

County: los-angeles

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Case Number: 26STCV04975 Hearing Date: September 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
21, 2026

CASE NAME: Fannie

Nancy Moore v. Good Shepherd Health Care Center of Santa Monica, et al.

CASE NO.: 26STCV04975

MOTION

FOR LEAVE TO AMEND THE COMPLAINT

MOVING PARTY: Plaintiff

Fannie Nancy Moore by and through her successor in interest Taequeenia Ellis

RESPONDING PARTY(S): Defendant J P H Consulting, Inc.

REQUESTED RELIEF:

1. An

order permitting Plaintiff leave to file a second amended complaint which adds
a cause of action for violation of Health & Safety Code § 1430(b).

TENTATIVE RULING:

1. Motion

for leave to file a second amended complaint is GRANTED;

2. Plaintiff

shall file their second amended complaint within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 11, 2026, Plaintiff Fannie Nancy Moore, by and through her Guardian ad Litem Tarqueenia Ellis (Plaintiff) filed a complaint against Defendants Good Shepherd Health Care Center of Santa Monica (Good Shepherd) and J P H Consulting, Inc. (JPH) (sometimes collectively Defendants) with causes of action for: (1) elder abuse; and (2) negligence.

According to the complaint, Plaintiff suffered severe injury from Defendants' neglect.

On April 27, 2026, Plaintiff filed the operative first amended complaint (FAC). It changed the Plaintiff to Fannie Nancy Moore by and through her successor in interest Tarqueenia Ellis.

On July 1, 2026, Defendants filed an answer.

On July 2, 2026, Plaintiff filed the instant motion for leave to amend the complaint. On September 8, 2026, JPH filed an opposition. On September 14, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

Code Civ. Proc. § 187 provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

Code Civ. Proc. § 473(a)(1) provides:¿¿

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.¿ The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.¿

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“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.”¿ (Kittredge Sports Co. v. Superior Court¿(1989) 213 Cal.App.3d 1045, 1047.)¿ Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature.¿ The court, however, does have discretion to deny leave to amend where a proposed amendment¿ fails to¿ state¿ a valid cause of action as a matter of law and the defect cannot be cured by further amendment.¿ (See¿ California Casualty General Ins. Co. v. Superior Court¿(1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by¿ Kransco¿ v. American Empire Surplus Lines Ins. Co.¿(2000) 23 Cal.4th 390).)¿¿

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Under California Rules of Court Rule (CRC), rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.¿¿¿¿¿¿

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Under CRC, rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

ANALYSIS:

Request for Judicial Notice

The court DENIES JPH's request for judicial notice as immaterial to this ruling.

Leave to Amend

Plaintiff alleges leave to add one legal theory based on nearly identical facts is warranted, that Plaintiff recently discovered this theory based on Defendants' document production, and Defendants will not suffer prejudice by the amendment since there is no trial date scheduled.

JPH argues leave to amend is improper as to the new claim against it because the violation can only be brought against the licensee and JPH is not the licensee (both as alleged by Plaintiff and via exhibits subject to judicial notice).

Plaintiff replies that JPH's arguments exceed the scope of what is considered in granting leave to amend and that Plaintiff also plead alter ego liability.

Here, leave to amend is warranted. First, Plaintiff included a copy of the amended complaint and stated the proposed changes, thereby satisfying CRC, rule 3.1324(a). Second, Plaintiff satisfied CRC, rule 3.1324(b) via her counsel's separate declaration. The procedural requirements for this motion are therefore met. Third, there is no indication Defendants will suffer prejudice since trial is not yet set. Indeed, JPH did not raise this in their opposition. Finally, JPH's arguments as to validity are more appropriately decided at the demurrer stage.

Accordingly, the court GRANTS Plaintiff's motion for leave to amend.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for leave to file a second amended complaint is GRANTED;

2. Plaintiff
shall file their second amended complaint within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court